

Title: CSIR's Turmeric Patent Revocation — The First Successful TK Biopiracy Challenge

Jurisdiction: International

Category: Case Law

Source Citation: Re-examination of US Patent No. 5,401,504 "Use of Turmeric in Wound Healing," United States Patent and Trademark Office, patent revoked 13 August 1997 (re-examination filed by CSIR, 28 October 1996)

Plain English Summary:

Two US-based researchers patented the use of turmeric powder for wound healing in 1995. India's CSIR challenged it before the USPTO, submitting 32 references — including a 1953 Journal of the Indian Medical Association paper and ancient Sanskrit, Urdu, and Hindi texts — proving the practice was centuries-old traditional knowledge, not a novel invention. The USPTO agreed and revoked all six claims. For an Ayurvedic applicant, this is the founding precedent for using **documented traditional knowledge as "prior art"** to defeat a patent — and it's the direct reason the Traditional Knowledge Digital Library (TKDL) was later built, so this kind of evidence is available instantly rather than needing a year-long research effort.

The Exact Legal Text:

[Patent office proceeding, not a statute — summarized holding.] The patent (US 5,401,504, granted 28 March 1995 to Suman K. Das and Hari Har P. Cohly of the University of Mississippi Medical Center) claimed a method of promoting wound healing by administering an effective amount of turmeric to a patient, orally or topically. CSIR filed a request for re-examination on the ground that the patent lacked novelty and non-obviousness, since turmeric's wound-healing use was established traditional knowledge in India, documented in the 1953 Journal of the Indian Medical Association and in historical Sanskrit, Urdu, and Hindi texts. The inventors argued that turmeric powder and paste had different bioavailability, so a "person having ordinary skill in the art" (PHOSITA) would not expect the same effect. The USPTO rejected this distinction and, on 13 August 1997, revoked all six claims of the patent on grounds of anticipation by prior art.

Keywords/Triggers:

turmeric patent revocation, CSIR biopiracy case, US Patent 5401504, prior art traditional knowledge, TKDL origin case, novelty challenge Ayurveda, wound healing patent India